

**CHAPTER cvi.**

An Act to confirm certain Provisional Orders of the Local Government Board relating to Haverfordwest Leicester Scarborough and Wallasey. A.D. 1905.
[4th August 1905.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1905. Short title.

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A.D. 1905.

SCHEDULE.

BOROUGH OF HAVERFORDWEST.

*Haverfordwest
Order.*

*Provisional Order for partially repealing and altering the
Haverfordwest Borough Act 1868.*

To the Mayor Aldermen and Burgesses of the Borough of
Haverfordwest;—

And to all others whom it may concern.

WHEREAS the Borough of Haverfordwest (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875;

And whereas the Corporation are by virtue of certain Charters the owners of markets and fairs (herein-after referred to as "the Borough markets" and "the Borough fairs");

31 & 32 Vict.
c. xxxiv.

And whereas the unrepealed provisions of the Haverfordwest Borough Act 1868 (herein-after referred to as "the Local Act") as altered by certain Provisional Orders which were confirmed by Parliament but do not affect the subject-matter of this Order are in force in the Borough;

And whereas by the Local Act those provisions of the Markets and Fairs Clauses Act 1847 which were incorporated with the Local Act were applied to all tolls payable to the Corporation in respect of commodities sold in the Borough markets and elsewhere in the Borough on market days or in the Borough fairs and to pickage stallage and standing tolls or dues payable to the Corporation by persons using or occupying stalls or standings in the Borough fairs or Borough markets;

And whereas it is expedient that the Local Act be partially repealed and altered as herein-after provided:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (herein-after referred to as "the commencement of this Order") the Local Act shall be partially

A.D. 1905.

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Provisional Orders Confirmation (No. 8) Act, 1905.

repealed and altered so that the following provisions shall take effect that is to say :—

A.D. 1905.
Haverfordwest
Order.

Art. I. Of the Local Act so much of Sections 2 and 3 as relates to markets and fairs and Sections 28 and 29 shall be repealed. Partial repeal of Local Act.

Art. II. Subject to the provisions of this Order the Borough markets (including all market houses market places weighing houses weighing places and other conveniences for holding the Borough markets) shall be and be deemed to have been markets held established or provided under the Public Health Act 1875 and the provisions of that Act with respect to markets and slaughterhouses and the enactments incorporated therewith and thereby rendered applicable to markets to be established or regulated in pursuance of the said Act (including the provisions and enactments relating to byelaws with respect to any market belonging to an urban authority) shall extend and apply to the Borough markets and shall have effect as if in relation to the Borough markets the Corporation were and had been empowered to do the things or any of the things mentioned in Section 166 of that Act. Markets.

Art. III. For the purposes of this Order the Borough fairs shall so far as they are held or used for the sale of marketable commodities be deemed to be Borough markets and the provisions of the Local Act as altered by this Order and the provisions and enactments applied by this Order shall accordingly apply to the Borough fairs as if they were Borough markets: Fairs.

Provided that if the Borough fairs be abolished or the day or days for holding the Borough fairs be altered in accordance with any statutory provisions in that behalf the Corporation may as the case requires either cease to hold the Borough fairs or alter the day or days in each year on which the Borough fairs shall be held and for the purpose of any such alteration the power of the Corporation to make byelaws in pursuance of any provisions or enactments applied by this Order shall be exerciseable in relation to the Borough fairs as if the said purpose were expressly mentioned in those provisions or enactments as a purpose for which byelaws may be made :

Provided also that subject to any such abolition or alteration as afore-said the Borough fairs shall continue to be held only on the day or days on which they have been held in the year immediately preceding the commencement of this Order.

Art. IV.—(1) The tolls stallages and rents including pickage stallage and standing tolls or dues which the Corporation are now empowered to demand and take in respect of marketable commodities sold in the Borough markets and elsewhere in the Borough on market days or in the Borough fairs shall remain in force and may be demanded and taken in respect of any market or fair to which this Order applies until the same are changed in pursuance of this Order. Tolls stallages and rents..

(2) For the purpose of enabling the Corporation to change the said tolls stallages and rents the provisions and enactments applied by this Order shall

Provisional Orders Confirmation (No. 8) Act, 1905.

repealed and altered so that the following provisions shall take effect that is to say :—

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Provided also that subject to any such abolition or alteration as afore-said the Borough fairs shall continue to be held only on the day or days on which they have been held in the year immediately preceding the commencement of this Order.

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A.D. 1905. apply and have effect as if the said tolls stallages and rents were subject to
Haverfordwest change in pursuance of the said provisions and enactments.
Order.

Receipts and
 expenses.

Art. V. Subject to the provisions of this Order—

(1) All moneys received by the Corporation in the execution of the Local Act as altered by this Order in respect of the Borough markets and Borough fairs shall be carried to the credit of the borough fund of the Borough :

(2) All expenses incurred or payable by the Corporation in the execution of the Local Act as altered by this Order in respect of the Borough markets and Borough fairs shall be defrayed out of the borough fund of the Borough.

Borrowing
 powers for
 purposes of
 markets and
 fairs.

Art. VI. The Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue arising from the Borough markets and Borough fairs and of the borough fund and borough rate of the Borough such sums not exceeding in the whole the sum of five thousand pounds as may be necessary for the purposes of the Borough markets and Borough fairs.

Local Loans
 Act and certain
 provisions of
 Public Health
 Act made
 applicable.

Art. VII. For the purpose of raising money in the exercise of the powers of borrowing or re-borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Corporation and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Period for
 repayment of
 borrowed
 moneys.

Art. VIII. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board in each case determine and so much of any moneys borrowed by the Corporation in respect of the Borough markets and the Borough fairs as shall be outstanding at the commencement of this Order (herein-after referred to as "the old market debt") shall be repaid within such period not exceeding thirty years from the commencement of this Order as the Local Government Board may direct or approve and the period so determined and sanctioned or directed or approved is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
 repayment.

Art. IX.—(1) The Corporation shall repay the old market debt and the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
 maintenance
 and application

(2) Subject to the provisions of Article X. of this Order if the Corporation determine to repay by means of a sinking fund the old market

A.D. 1905. apply and have effect as if the said tolls stallages and rents were subject to
Haverfordwest change in pursuance of the said provisions and enactments.
Order.

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Formation
 maintenance
 and application

(2) Subject to the provisions of Article X. of this Order if the Corporation determine to repay by means of a sinking fund the old market

debt or any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

A.D. 1905.

Haverfordwest
*Order.*of sinking
fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation the Corporation being at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

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(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(5) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

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(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

A.D. 1905.

*Haverfordwest
Order.*

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase re-
duction or
discontinuance
of payments to
sinking fund.

Art. X.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Power to
re-borrow.

Art. XI. The Corporation shall except as herein-after provided have power to re-borrow for the purpose of paying off the old market debt and any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Corporation within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments

A.D. 1905.

*Haverfordwest
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Provided that the Corporation shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments

or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of the said repayment other than moneys borrowed for that purpose :

A.D. 1905.

Haverfordwest
Order.

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the moneys for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Art. XII. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Corporation only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Corporation with the approval of the Local Government Board determine.

Application of
borrowed
moneys.

Art. XIII.—(1) Subject to the provisions of this Article any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to those applicants collectively be not less than five hundred pounds in the whole.

Art. XIV.—(1) The town clerk of the Borough shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised under this Order and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the town clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the town clerk shall

Return as to
provision for
repayment of
debt.

or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of the said repayment other than moneys borrowed for that purpose :

A.D. 1905.

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Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to those applicants collectively be not less than five hundred pounds in the whole.

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repayment of
debt.

A.D. 1905. *Haverfordwest Order.* for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Inquiries and expenses.

Art. XV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to the inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Recovery of penalties forfeitures &c. Appeal.

Art. XVI. Except in any case to which Article XIV. of this Order relates offences against any provisions or enactments applied by this Order and penalties expenses and charges imposed payable or recoverable under the said provisions or enactments or under any byelaw duly made and confirmed in pursuance thereof [may be prosecuted and recovered in a summary manner and any person deeming himself aggrieved by any conviction or order made by a court of summary jurisdiction under the provisions of this Order may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

Short title.

Art. XVII. This Order may be cited as the Haverfordwest Order 1905.

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

A.D. 1905. *Haverfordwest Order.* for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

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this Twenty-ninth day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.
S. B. PROVIS Secretary.

BOROUGH OF LEICESTER.

A.D. 1905.

Provisional Order for altering the Leicester Cattle Market Town Hall and Improvement Act 1866 the Leicester Improvement Act 1876 and the Leicester Corporation Act 1902.

*Leicester
Order.*

To the Mayor Aldermen and Burgesses of the Borough of Leicester;—

And to all others whom it may concern.

WHEREAS the Borough of Leicester (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Leicester Cattle Market Town Hall and Improvement Act 1866 the Leicester Improvement Act 1876 and the Leicester Corporation Act 1902 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and all which Acts are herein-after together referred to as "the Local Acts") as altered by the Leicester Orders 1893 to 1900 and other Orders which were duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough;

29 Vict. c. xxvi.
39 Vict. c. xxvi.
2 Edw. 7.
c. clxxvii.

And whereas the Local Acts contain provisions requiring the consent or approbation of the Commissioners or of certain Commissioners of His Majesty's Treasury to enable the Corporation to borrow money or to sell exchange lease alienate incumber or dispose of certain lands;

And whereas by the Act of 1866 and the Act of 1876 the Corporation were authorised to erect maintain furnish and fit up a town hall and other public buildings and to borrow money for those purposes;

And whereas by Section 111 of the Act of 1902 the Corporation were empowered to widen straighten deepen and improve any brook stream or watercourse in the Borough by agreement with the owners lessees and occupiers of the lands through which the same passes and to acquire by agreement any lands requisite for the purpose;

And whereas the Corporation have executed works of the nature referred to in Section 111 of the Act of 1902 in connexion with the improvement of Coalpit Lane and Thurcaston Road Bridge within the Borough and the works are shown on the plans and sections (herein-after referred to as "the plans") which have been sealed by the Local Government Board and deposited in their office and duplicates whereof sealed in like manner are deposited in the office of the town clerk of the Borough and it is expedient that the provisions herein-after set forth be made with regard to those works

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And to all others whom it may concern.

WHEREAS the Borough of Leicester (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Leicester Cattle Market Town Hall and Improvement Act 1866 the Leicester Improvement Act 1876 and the Leicester Corporation Act 1902 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and all which Acts are herein-after together referred to as "the Local Acts") as altered by the Leicester Orders 1893 to 1900 and other Orders which were duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough;

29 Vict. c. xxvi.
39 Vict. c. xxvi.
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c. clxxvii.

And whereas the Local Acts contain provisions requiring the consent or approbation of the Commissioners or of certain Commissioners of His Majesty's Treasury to enable the Corporation to borrow money or to sell exchange lease alienate incumber or dispose of certain lands;

And whereas by the Act of 1866 and the Act of 1876 the Corporation were authorised to erect maintain furnish and fit up a town hall and other public buildings and to borrow money for those purposes;

And whereas by Section 111 of the Act of 1902 the Corporation were empowered to widen straighten deepen and improve any brook stream or watercourse in the Borough by agreement with the owners lessees and occupiers of the lands through which the same passes and to acquire by agreement any lands requisite for the purpose;

And whereas the Corporation have executed works of the nature referred to in Section 111 of the Act of 1902 in connexion with the improvement of Coalpit Lane and Thurcaston Road Bridge within the Borough and the works are shown on the plans and sections (herein-after referred to as "the plans") which have been sealed by the Local Government Board and deposited in their office and duplicates whereof sealed in like manner are deposited in the office of the town clerk of the Borough and it is expedient that the provisions herein-after set forth be made with regard to those works

A.D. 1905.

*Leicester
Order.*38 & 39 Vict.
c. 55.

and to future works of a similar nature to be executed in pursuance of the said section :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect :—

Approval of
Local Govern-
ment Board to
borrowing of
money and dis-
posal &c. of
lands in certain
cases substitu-
ted for approval
of Treasury.

Art. I. The Local Acts shall be altered so as to provide that in the Local Acts and in the unrepealed provisions of any other Local Act in force in the Borough references to the Local Government Board shall be substituted for references to the Commissioners of His Majesty's Treasury or any of those Commissioners wherever the consent approval or approbation of those Commissioners or any of them is required to enable the Corporation to borrow money or to sell exchange lease alienate incumber or dispose of lands or other property and that the Local Acts and the unrepealed provisions aforesaid shall apply and have effect accordingly.

Increase of
borrowing
power for town
hall and public
buildings.

Art. II.—(1) In addition to the sums already authorised to be borrowed for the purposes of the town hall and public buildings the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow any sum not exceeding twenty-five thousand pounds for those purposes.

(2) For the repayment of all moneys to be borrowed in pursuance of this Order and for the payment of interest thereon the borough fund and general district rate are hereby primarily made chargeable and the provisions of the Act of 1902 shall apply and have effect accordingly.

Application of
provisions of
Act of 1902
with regard to
mortgages.

(3) The provisions of Section 85 of the Act of 1902 relating to mortgages made under the powers of that Act shall extend and apply to all mortgages made by the Corporation for the purpose of raising money in the exercise of the powers conferred upon them by this Article.

Period for re-
payment of
borrowed
moneys.

Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Act of 1902.

Validating
works for im-
provement of
watercourses.

Art. IV. Notwithstanding anything in Section 111 of the Act of 1902 the works which before the date of this Order were executed by the Corporation in connexion with the improvement of Coalpit Lane and the Thurstaston Road Bridge in the Borough and which are shown on the plans shall be deemed to have been executed by the Corporation in pursuance of the powers conferred upon them by that section and to be works for which the Corporation might acquire lands by agreement and for which they may borrow money under paragraph (c) of Section 84 of the Act of 1902 :

Provided that nothing in this Order shall be deemed to relieve the Corporation from any liability incurred by through or in consequence of their

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*Leicester
Order.*38 & 39 Vict.
c. 55.

and to future works of a similar nature to be executed in pursuance of the said section :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts shall be altered so that the following provisions shall take effect :—

Approval of
Local Govern-
ment Board to
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money and dis-
posal &c. of
lands in certain
cases substitu-
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of Treasury.

Art. I. The Local Acts shall be altered so as to provide that in the Local Acts and in the unrepealed provisions of any other Local Act in force in the Borough references to the Local Government Board shall be substituted for references to the Commissioners of His Majesty's Treasury or any of those Commissioners wherever the consent approval or approbation of those Commissioners or any of them is required to enable the Corporation to borrow money or to sell exchange lease alienate incumber or dispose of lands or other property and that the Local Acts and the unrepealed provisions aforesaid shall apply and have effect accordingly.

Increase of
borrowing
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buildings.

Art. II.—(1) In addition to the sums already authorised to be borrowed for the purposes of the town hall and public buildings the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order borrow any sum not exceeding twenty-five thousand pounds for those purposes.

(2) For the repayment of all moneys to be borrowed in pursuance of this Order and for the payment of interest thereon the borough fund and general district rate are hereby primarily made chargeable and the provisions of the Act of 1902 shall apply and have effect accordingly.

Application of
provisions of
Act of 1902
with regard to
mortgages.

(3) The provisions of Section 85 of the Act of 1902 relating to mortgages made under the powers of that Act shall extend and apply to all mortgages made by the Corporation for the purpose of raising money in the exercise of the powers conferred upon them by this Article.

Period for re-
payment of
borrowed
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Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Corporation with the sanction of the Local Government Board determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Act of 1902.

Validating
works for im-
provement of
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Art. IV. Notwithstanding anything in Section 111 of the Act of 1902 the works which before the date of this Order were executed by the Corporation in connexion with the improvement of Coalpit Lane and the Thurstaston Road Bridge in the Borough and which are shown on the plans shall be deemed to have been executed by the Corporation in pursuance of the powers conferred upon them by that section and to be works for which the Corporation might acquire lands by agreement and for which they may borrow money under paragraph (c) of Section 84 of the Act of 1902 :

Provided that nothing in this Order shall be deemed to relieve the Corporation from any liability incurred by through or in consequence of their

omission or failure to agree before the execution of the said works with the owners lessees and occupiers of the lands through which any brook stream or watercourse passes.

A.D. 1905.

*Leicester
Order.*

Art. V.—The Act of 1902 shall have effect as if for Section 111 there were substituted the following enactment that is to say :—

Altering Sec-
tion 111 of Act
of 1902.

“ 111.—(1) The Corporation may widen straighten deepen and improve
“ any brook stream or watercourse in the Borough by agreement
“ with the owners lessees and occupiers of the lands through
“ which any such brook stream or watercourse passes and which
“ are situate within the Borough and which also in the case of
“ the River Soar lie between the boundary of the Borough and
“ Birstal Weir and may acquire by agreement any lands requisite
“ for any such purpose :

“ (2) Where the Corporation propose to execute any such work and
“ are unable to agree with any such owner lessee or occupier
“ with respect to the said work the Corporation may apply to
“ the Local Government Board for an order to authorise the
“ execution of the work :

“ (3) Before making any such application the Corporation shall cause
“ plans and sections of the proposed work to be prepared and to
“ be deposited at the office of the Town Clerk and as soon as
“ conveniently may be after the deposit of the plans and sections
“ shall publish once at least in each of two consecutive weeks
“ in two local newspapers an advertisement stating when the
“ intended application to the Local Government Board will be
“ made describing shortly the nature of the work to which the
“ application will relate naming the place at which plans and
“ sections of that work have been deposited for inspection and
“ the hours at which and the days during which the said plans
“ and sections may be inspected and requiring a statement in
“ writing of the grounds of every objection by any owner lessee
“ and occupier as aforesaid to the proposed work to be sent to
“ the Town Clerk and to the Local Government Board on or
“ before a date which shall be specified in the advertisement and
“ which shall be not less than one month after the publication
“ of the second advertisement :

“ The Corporation shall also cause a copy of a notice to the
“ effect of the advertisement to be served by post upon every
“ such owner lessee and occupier except in any case in which
“ after diligent inquiry the Corporation have failed to ascertain
“ the postal address of any such owner lessee or occupier In
“ that case the Corporation shall cause a copy of the notice to be
“ delivered to some person on the lands in respect of which the
“ said owner lessee or occupier is interested or if there is no

omission or failure to agree before the execution of the said works with the owners lessees and occupiers of the lands through which any brook stream or watercourse passes.

A.D. 1905.

*Leicester
Order.*

Art. V.—The Act of 1902 shall have effect as if for Section 111 there were substituted the following enactment that is to say :—

Altering Sec-
tion 111 of Act
of 1902.

“ 111.—(1) The Corporation may widen straighten deepen and improve
“ any brook stream or watercourse in the Borough by agreement
“ with the owners lessees and occupiers of the lands through
“ which any such brook stream or watercourse passes and which
“ are situate within the Borough and which also in the case of
“ the River Soar lie between the boundary of the Borough and
“ Birstal Weir and may acquire by agreement any lands requisite
“ for any such purpose :

“ (2) Where the Corporation propose to execute any such work and
“ are unable to agree with any such owner lessee or occupier
“ with respect to the said work the Corporation may apply to
“ the Local Government Board for an order to authorise the
“ execution of the work :

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“ plans and sections of the proposed work to be prepared and to
“ be deposited at the office of the Town Clerk and as soon as
“ conveniently may be after the deposit of the plans and sections
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“ the hours at which and the days during which the said plans
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“ and occupier as aforesaid to the proposed work to be sent to
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“ before a date which shall be specified in the advertisement and
“ which shall be not less than one month after the publication
“ of the second advertisement :

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“ effect of the advertisement to be served by post upon every
“ such owner lessee and occupier except in any case in which
“ after diligent inquiry the Corporation have failed to ascertain
“ the postal address of any such owner lessee or occupier In
“ that case the Corporation shall cause a copy of the notice to be
“ delivered to some person on the lands in respect of which the
“ said owner lessee or occupier is interested or if there is no

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—
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Order.

“ such person to whom the copy can be delivered the Corporation
“ shall cause the said copy to be fixed in some conspicuous
“ position on the said lands :

“ The Corporation shall in every case cause the plans and
“ sections of any proposed work to be kept deposited and
“ available for inspection at the office of the Town Clerk at the
“ hours and during the days named in the advertisement and
“ notice hereinbefore mentioned :

“ (4) Every application made by the Corporation to the Local Govern-
“ ment Board shall be accompanied by the plans and sections
“ hereinbefore required to be deposited and also by a statutory
“ declaration by the town clerk in proof of compliance with such
“ of the preceding requirements as are applicable to the case :

“ (5) The Local Government Board may at their option entertain or
“ refuse to entertain an application made to them by the
“ Corporation :

“ Where the Local Government Board entertain any such
“ application they shall cause a local inquiry to be held into
“ the subject matter and sections two hundred and ninety-three
“ two hundred and ninety-six and subsections (1) and (2) of
“ section two hundred and ninety-seven of the Public Health Act
“ 1875 shall apply to any such local inquiry as if those sections
“ and subsections were herein re-enacted and in terms made
“ applicable to the inquiry :

“ (6) The Local Government Board after considering all objections made
“ at any such local inquiry together with all objections received
“ by them from persons interested may disallow or allow as they
“ deem necessary any work to which the local inquiry has had
“ reference :

“ Where the Local Government Board allow any such work
“ they may by order modify any details of that work or impose
“ any conditions with respect to its execution or with respect to
“ any consent or agreement which in their opinion is required
“ or dispense either conditionally or unconditionally with any
“ consent or agreement where they are satisfied that there is
“ reasonable cause for any such dispensation and that the
“ interests of the Borough or of any person will not be prejudiced
“ by the dispensation :

“ (7) Every order made by the Local Government Board in pursuance
“ of the foregoing provisions shall be final and shall have the
“ effect of an Act of Parliament and shall be conclusive evidence
“ that the said requirements have been complied with and that
“ the order has been duly made and is within the powers of the
“ said provisions.”

A.D. 1905.

*Leicester
Order.*

" such person to whom the copy can be delivered the Corporation
" shall cause the said copy to be fixed in some conspicuous
" position on the said lands :

" The Corporation shall in every case cause the plans and
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" available for inspection at the office of the Town Clerk at the
" hours and during the days named in the advertisement and
" notice hereinbefore mentioned :

" (4) Every application made by the Corporation to the Local Govern-
" ment Board shall be accompanied by the plans and sections
" hereinbefore required to be deposited and also by a statutory
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" application they shall cause a local inquiry to be held into
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" two hundred and ninety-six and subsections (1) and (2) of
" section two hundred and ninety-seven of the Public Health Act
" 1875 shall apply to any such local inquiry as if those sections
" and subsections were herein re-enacted and in terms made
" applicable to the inquiry :

" (6) The Local Government Board after considering all objections made
" at any such local inquiry together with all objections received
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" deem necessary any work to which the local inquiry has had
" reference :

" Where the Local Government Board allow any such work
" they may by order modify any details of that work or impose
" any conditions with respect to its execution or with respect to
" any consent or agreement which in their opinion is required
" or dispense either conditionally or unconditionally with any
" consent or agreement where they are satisfied that there is
" reasonable cause for any such dispensation and that the
" interests of the Borough or of any person will not be prejudiced
" by the dispensation :

" (7) Every order made by the Local Government Board in pursuance
" of the foregoing provisions shall be final and shall have the
" effect of an Act of Parliament and shall be conclusive evidence
" that the said requirements have been complied with and that
" the order has been duly made and is within the powers of the
" said provisions."

Art. VI. Section 308 of the Public Health Act 1875 (which section relates to compensation for damage) and the provisions of that Act which relate to arbitration shall apply as if the same were herein re-enacted and in terms made applicable to the case of any owner lessee or occupier specified in Section 111 of the Act of 1902 as altered by this Order who sustains damage by reason of the exercise by the Corporation of any powers conferred by this Order in relation to any work allowed by the Local Government Board in pursuance of this Order.

A.D. 1905.

Leicester Order.

Application of provisions of Public Health Act to persons affected by works.

Art. VII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order or of the Act of 1902 as altered by this Order the costs incurred by that Board in relation to the inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the said inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Inquiries and expenses.

Art. VIII. This Order may be cited as the Leicester Order 1905 and this Order and the Leicester Orders 1893 to 1905 may be cited together as the Leicester Orders 1893 to 1905.

Short titles.

Given under the Seal of Office of the Local Government Board this
First day of May One thousand nine hundred and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

BOROUGH OF SCARBOROUGH.

Provisional Order for altering the Scarborough Improvement Act 1889.

Scarborough Order.

To the Mayor Aldermen and Burgesses of the Borough of Scarborough;—

And to all others whom it may concern.

WHEREAS the Borough of Scarborough (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and are the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Scarborough Improvement Act 1889 (herein-after referred to as "the Act of 1889") as altered

52 & 53 Vict.
c. clxiv.

Art. VI. Section 308 of the Public Health Act 1875 (which section relates to compensation for damage) and the provisions of that Act which relate to arbitration shall apply as if the same were herein re-enacted and in terms made applicable to the case of any owner lessee or occupier specified in Section 111 of the Act of 1902 as altered by this Order who sustains damage by reason of the exercise by the Corporation of any powers conferred by this Order in relation to any work allowed by the Local Government Board in pursuance of this Order.

A.D. 1905.

Leicester Order.

Application of provisions of Public Health Act to persons affected by works.

Art. VII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order or of the Act of 1902 as altered by this Order the costs incurred by that Board in relation to the inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the said inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

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S. B. PROVIS Secretary.

BOROUGH OF SCARBOROUGH.

Provisional Order for altering the Scarborough Improvement Act 1889.

Scarborough Order.

To the Mayor Aldermen and Burgesses of the Borough of Scarborough;—

And to all others whom it may concern.

WHEREAS the Borough of Scarborough (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and are the local authority within the meaning of the Public Health Act 1875;

And whereas the unrepealed provisions of the Scarborough Improvement Act 1889 (herein-after referred to as "the Act of 1889") as altered

52 & 53 Vict.
c. clxiv.

A.D. 1905.

*Scarborough
Order.*

60 & 61 Vict.

c. cxli.

62 & 63 Vict.

c. cxlv.

2 Edw. 7. c. lxx.

63 & 64 Vict.

c. cclxxix.

by the Scarborough Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1897 the Scarborough Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1899 and the Scarborough Order 1902 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1902 (each of which Orders and Confirming Acts is herein-after respectively referred to as the Order of the year in which it was made and the Confirming Act of the year in which it was passed) and of the Scarborough Corporation Act 1900 (herein-after referred to as "the Act of 1900") as altered by the Scarborough Order 1904 which was duly confirmed by Parliament but does not affect the subject-matter of this Order are in force in the Borough;

And whereas by Section 168 of the Act of 1889 the Corporation were empowered to make and maintain a marine drive or carriage road with a promenade for foot passengers and sea wall (therein and herein-after referred to as "the road or drive") including such alteration of the sea wall as was authorised by the Act of 1900 commencing at the eastern end of the marine drive or carriage road and promenade on the North Bay and terminating at the shore end of the east pier of the harbour with all requisite works and conveniences connected therewith;

And whereas by Section 189 of the Act of 1889 it was provided that if the road or drive was not completed within a period of ten years from the passing of the Act of 1889 then on the expiration of that period the powers by that Act granted to the Corporation for making the same and otherwise in relation thereto should cease except as to so much thereof as might be then completed;

And whereas the time for the completion of the road or drive by the Corporation was extended by Article I. of the Order of 1899 for a period of three years and by Article I. of the Order of 1902 for a further period of three years;

And whereas by Section 192 of the Act of 1889 the Corporation were authorised to borrow for the purposes of the road or drive the sum of seventy thousand pounds but it was enacted that no part of the said sum should be borrowed for those purposes without the consent of the owners and ratepayers of the Borough to be expressed by resolution in the manner provided in the fourth section of the Borough Funds Act 1872;

And whereas by Article III. of the Order of 1897 the Corporation were empowered to borrow a further sum of ten thousand pounds for the purposes of the road or drive the owners and ratepayers of the Borough having expressed their consent to the borrowing in the manner prescribed in the last-mentioned section;

And whereas it is expedient that the time for the completion of the road or drive by the Corporation should be extended for a further period and

A.D. 1905.

*Scarborough
Order.*60 & 61 Vict.
c. cxli.62 & 63 Vict.
c. cxlv.

2 Edw. 7. c. lxx.

63 & 64 Vict.
c. cclxxix.

by the Scarborough Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 14) Act 1897 the Scarborough Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1899 and the Scarborough Order 1902 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1902 (each of which Orders and Confirming Acts is herein-after respectively referred to as the Order of the year in which it was made and the Confirming Act of the year in which it was passed) and of the Scarborough Corporation Act 1900 (herein-after referred to as "the Act of 1900") as altered by the Scarborough Order 1904 which was duly confirmed by Parliament but does not affect the subject-matter of this Order are in force in the Borough ;

And whereas by Section 168 of the Act of 1889 the Corporation were empowered to make and maintain a marine drive or carriage road with a promenade for foot passengers and sea wall (therein and herein-after referred to as "the road or drive") including such alteration of the sea wall as was authorised by the Act of 1900 commencing at the eastern end of the marine drive or carriage road and promenade on the North Bay and terminating at the shore end of the east pier of the harbour with all requisite works and conveniences connected therewith ;

And whereas by Section 189 of the Act of 1889 it was provided that if the road or drive was not completed within a period of ten years from the passing of the Act of 1889 then on the expiration of that period the powers by that Act granted to the Corporation for making the same and otherwise in relation thereto should cease except as to so much thereof as might be then completed ;

And whereas the time for the completion of the road or drive by the Corporation was extended by Article I. of the Order of 1899 for a period of three years and by Article I. of the Order of 1902 for a further period of three years ;

And whereas by Section 192 of the Act of 1889 the Corporation were authorised to borrow for the purposes of the road or drive the sum of seventy thousand pounds but it was enacted that no part of the said sum should be borrowed for those purposes without the consent of the owners and ratepayers of the Borough to be expressed by resolution in the manner provided in the fourth section of the Borough Funds Act 1872 ;

And whereas by Article III. of the Order of 1897 the Corporation were empowered to borrow a further sum of ten thousand pounds for the purposes of the road or drive the owners and ratepayers of the Borough having expressed their consent to the borrowing in the manner prescribed in the last-mentioned section ;

And whereas it is expedient that the time for the completion of the road or drive by the Corporation should be extended for a further period and

that the Corporation should be empowered to borrow further moneys for the said purpose and the parochial electors of the Borough have expressed their consent at a meeting convened in accordance with the Rule (1) of the First Schedule to the Borough Funds Act 1903 to the borrowing for the said purposes of a further sum of twenty-five thousand pounds ;

A.D. 1905.

*Scarborough
Order.*

And whereas by the Act of 1900 provision is made as to the repayment of principal moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power including borrowing powers under that Act and not raised by the issue of Corporation Stock and by Section 76 of the Act of 1900 it is provided that the said principal moneys shall be repaid within the periods respectively prescribed by the statutory borrowing powers and in the Act of 1900 referred to as the prescribed periods :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1889 as altered by the Order of 1897 the Order of 1899 and the Order of 1902 shall be further altered so that the following provisions shall take effect (that is to say) :—

38 & 39 Vict.
c. 55.

Art. I.—(1) Section 189 of the Act of 1889 as altered by the Order of 1899 and the Order of 1902 and the Confirming Act of 1902 so far as it relates to the Order of 1902 shall have effect as if in Article I. of the Order of 1902 the words

Extension of
period for
completion of
works.

“ As regards the road or drive twenty-one years from the passing of this
“ Act ”

were substituted for the words

“ As regards the road or drive sixteen years from the passing of this
“ Act ”.

(2) Section 192 of the Act of 1889 as altered as aforesaid and as further altered by this Order shall as from the First day of January One thousand nine hundred and five be deemed to have had effect and from the date of the confirmation of this Order shall have effect as if in relation to the borrowing of the sums authorised by this Order and in relation to the borrowing of any sums authorised by any subsequent Provisional Order to be borrowed for the purposes of the road or drive the consent of the parochial electors of the Borough as the result of proceedings in accordance with the requirements contained in the First Schedule to the Borough Funds Act 1903 and the sums authorised as aforesaid had been and were substituted in the said section for the consent and sum therein mentioned.

Art. II.—(1) In addition to the sums already authorised to be borrowed for the purposes of the road or drive the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order

Additional bor-
rowing powers
for works.

that the Corporation should be empowered to borrow further moneys for the said purpose and the parochial electors of the Borough have expressed their consent at a meeting convened in accordance with the Rule (1) of the First Schedule to the Borough Funds Act 1903 to the borrowing for the said purposes of a further sum of twenty-five thousand pounds ;

A.D. 1905.

*Scarborough
Order.*

And whereas by the Act of 1900 provision is made as to the repayment of principal moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power including borrowing powers under that Act and not raised by the issue of Corporation Stock and by Section 76 of the Act of 1900 it is provided that the said principal moneys shall be repaid within the periods respectively prescribed by the statutory borrowing powers and in the Act of 1900 referred to as the prescribed periods :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1889 as altered by the Order of 1897 the Order of 1899 and the Order of 1902 shall be further altered so that the following provisions shall take effect (that is to say) :—

38 & 39 Vict.
c. 55.

Art. I.—(1) Section 189 of the Act of 1889 as altered by the Order of 1899 and the Order of 1902 and the Confirming Act of 1902 so far as it relates to the Order of 1902 shall have effect as if in Article I. of the Order of 1902 the words

Extension of
period for
completion of
works.

“ As regards the road or drive twenty-one years from the passing of this
“ Act ”

were substituted for the words

“ As regards the road or drive sixteen years from the passing of this
“ Act ”.

(2) Section 192 of the Act of 1889 as altered as aforesaid and as further altered by this Order shall as from the First day of January One thousand nine hundred and five be deemed to have had effect and from the date of the confirmation of this Order shall have effect as if in relation to the borrowing of the sums authorised by this Order and in relation to the borrowing of any sums authorised by any subsequent Provisional Order to be borrowed for the purposes of the road or drive the consent of the parochial electors of the Borough as the result of proceedings in accordance with the requirements contained in the First Schedule to the Borough Funds Act 1903 and the sums authorised as aforesaid had been and were substituted in the said section for the consent and sum therein mentioned.

Art. II.—(1) In addition to the sums already authorised to be borrowed for the purposes of the road or drive the Corporation may with the sanction of the Local Government Board and subject to the provisions of this Order

Additional bor-
rowing powers
for works.

A.D. 1905. borrow any sums not exceeding twenty-five thousand pounds for those purposes.
Scarborough Order.

(2) For the repayment of all moneys to be borrowed in pursuance of this Order and for the payment of interest thereon the district fund and general district rate are hereby primarily made chargeable and the Act of 1900 shall apply and have effect accordingly.

Period for
repayment of
borrowed
moneys.

Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding thirty years from the date of borrowing as the Corporation with the sanction of the Local Government Board determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Act of 1900.

Inquiries and
expenses.

Art. IV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Act of 1889 the Order of 1897 or this Order the costs incurred by that Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short titles.

Art. V. This Order may be cited as the Scarborough Order 1905 and this Order the Scarborough Orders 1897 to 1902 and the Scarborough Order 1904 may be cited together as the Scarborough Orders 1897 to 1905.

Given under the Seal of Office of the Local Government Board
 this Twenty-ninth day of April One thousand nine hundred
 and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

URBAN DISTRICT OF WALLASEY.

*Wallasey
Order.*

Provisional Order for the alteration of the Wallasey Improvement Act 1858 the Wallasey Improvement Act 1861 the Wallasey Improvement Act 1864 the Wallasey Improvement Act 1867 and the Wallasey Improvement Act 1872 and certain Confirming Acts.

To the Urban District Council of Wallasey ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Wallasey (herein-after referred to as "the District Council") are the local authority within the meaning of

A.D. 1905. borrow any sums not exceeding twenty-five thousand pounds for those purposes.
 Scarborough Order.

(2) For the repayment of all moneys to be borrowed in pursuance of this Order and for the payment of interest thereon the district fund and general district rate are hereby primarily made chargeable and the Act of 1900 shall apply and have effect accordingly.

Period for repayment of borrowed moneys.

Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding thirty years from the date of borrowing as the Corporation with the sanction of the Local Government Board determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Act of 1900.

Inquiries and expenses.

Art. IV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Act of 1889 the Order of 1897 or this Order the costs incurred by that Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Corporation and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

Short titles.

Art. V. This Order may be cited as the Scarborough Order 1905 and this Order the Scarborough Orders 1897 to 1902 and the Scarborough Order 1904 may be cited together as the Scarborough Orders 1897 to 1905.

Given under the Seal of Office of the Local Government Board
 this Twenty-ninth day of April One thousand nine hundred
 and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

URBAN DISTRICT OF WALLASEY.

Wallasey Order.

Provisional Order for the alteration of the Wallasey Improvement Act 1858 the Wallasey Improvement Act 1861 the Wallasey Improvement Act 1864 the Wallasey Improvement Act 1867 and the Wallasey Improvement Act 1872 and certain Confirming Acts.

To the Urban District Council of Wallasey ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Wallasey (herein-after referred to as "the District Council") are the local authority within the meaning of

Provisional Orders Confirmation (No. 8) Act, 1905.

the Public Health Act 1875 for the Urban District of Wallasey (herein-after referred to as "the District");

A.D. 1905.

*Wallasey
Order.*

And whereas there are in force in the District the unrepealed provisions of the Wallasey Improvement Act 1858 the Wallasey Improvement Act 1861 the Wallasey Improvement Act 1864 the Wallasey Improvement Act 1867 and the Wallasey Improvement Act 1872 (which Acts are herein-after collectively referred to as "the Local Acts") as altered by the Wallasey Order (No. 1) 1877 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 by the Wallasey Order 1881 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 by the Wallasey Order 1883 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 by the Wallasey Order 1895 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 by the Wallasey Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897 by the Wallasey Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1899 (which last-mentioned Order and Act are herein-after respectively referred to as "the Order of 1899" and "the Confirming Act of 1899") and by the Wallasey Order 1900 (herein-after referred to as "the Order of 1900") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1900 and by certain Local Acts and Provisional Orders which do not affect the subject-matter of this Order ;

21 & 22 Vict.

c. lxiii.

24 Vict. c. iv.

27 & 28 Vict.

c. cxvii.

30 & 31 Vict.

c. cxxxii.

35 & 36 Vict.

c. cxxv.

40 & 41 Vict.

c. cxxxvii.

44 & 45 Vict.

c. clxii.

46 & 47 Vict.

c. cxxxvii.

58 & 59 Vict.

c. xl.

60 & 61 Vict.

c. lxxviii.

62 & 63 Vict.

c. cxlv.

63 & 64 Vict.

c. clxxvii.

And whereas by Article I. of the Order of 1899 as altered by Article I. of the Order of 1900 the District Council were empowered with the sanction of the Local Government Board to borrow in addition to the sums previously authorised to be borrowed for the purposes of their ferry undertaking such further sums not exceeding in the whole the sum of sixty-seven thousand pounds as might be necessary for the provision of new boats for their ferry undertaking ;

And whereas it is expedient that the District Council be empowered to borrow further moneys for the said purpose :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts and the Confirming Acts above mentioned shall be altered as follows that is to say :—

88 & 89 Vict.

c. 55.

Art. I. The Local Acts as altered by the Orders above mentioned and the Confirming Act of 1899 shall have effect as if in Article I. of the Order of 1899 as altered by Article I. of the Order of 1900 the words "one hundred and eleven thousand pounds" were substituted for the words "sixty-seven thousand pounds."

Additional bor-
rowing powers
for ferry boats.

Provisional Orders Confirmation (No. 8) Act, 1905.

the Public Health Act 1875 for the Urban District of Wallasey (herein-after referred to as "the District");

A.D. 1905.

Wallasey Order.

And whereas there are in force in the District the unrepealed provisions of the Wallasey Improvement Act 1858 the Wallasey Improvement Act 1861 the Wallasey Improvement Act 1864 the Wallasey Improvement Act 1867 and the Wallasey Improvement Act 1872 (which Acts are herein-after collectively referred to as "the Local Acts") as altered by the Wallasey Order (No. 1) 1877 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Caistor Union &c.) Act 1877 by the Wallasey Order 1881 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 by the Wallasey Order 1883 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1883 by the Wallasey Order 1895 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1895 by the Wallasey Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897 by the Wallasey Order 1899 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1899 (which last-mentioned Order and Act are herein-after respectively referred to as "the Order of 1899" and "the Confirming Act of 1899") and by the Wallasey Order 1900 (herein-after referred to as "the Order of 1900") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1900 and by certain Local Acts and Provisional Orders which do not affect the subject-matter of this Order ;

21 & 22 Vict.
c. lxiii.
24 Vict. c. iv.
27 & 28 Vict.
c. cxvii.
30 & 31 Vict.
c. cxxxii.
35 & 36 Vict.
c. cxxv.
40 & 41 Vict.
c. cxxxvii.
44 & 45 Vict.
c. clxii.
46 & 47 Vict.
c. cxxxvii.
58 & 59 Vict.
c. xl.
60 & 61 Vict.
c. lxxviii.
62 & 63 Vict.
c. cxlv.
63 & 64 Vict.
c. clxxvii.

And whereas by Article I. of the Order of 1899 as altered by Article I. of the Order of 1900 the District Council were empowered with the sanction of the Local Government Board to borrow in addition to the sums previously authorised to be borrowed for the purposes of their ferry undertaking such further sums not exceeding in the whole the sum of sixty-seven thousand pounds as might be necessary for the provision of new boats for their ferry undertaking ;

And whereas it is expedient that the District Council be empowered to borrow further moneys for the said purpose :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Acts and the Confirming Acts above mentioned shall be altered as follows that is to say :—

Art. I. The Local Acts as altered by the Orders above mentioned and the Confirming Act of 1899 shall have effect as if in Article I. of the Order of 1899 as altered by Article I. of the Order of 1900 the words "one hundred and eleven thousand pounds" were substituted for the words "sixty-seven thousand pounds."

Additional borrowing powers for ferry boats.

[Ch. cvi.]

Local Government Board's

[5 Edw. 7.]

Provisional Orders Confirmation (No. 8) Act, 1905.

A.D. 1905.

*Wallasey
Order.*

Short titles.

Art. II. This Order may be cited as the Wallasey Order 1905 and the Wallasey Orders 1852 to 1900 and this Order may be cited together as the Wallasey Orders 1852 to 1905.

Given under the Seal of Office of the Local Government Board
this Twenty-ninth day of April One thousand nine hundred
and five.

(L.S.)

G. W. BALFOUR President.

S. B. PROVIS Secretary.

Printed by EYRE and SPOTTISWOODE,

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[Ch. cvi.] *Local Government Board's* [5 Edw. 7.]
Provisional Orders Confirmation (No. 8) Act, 1905.

A.D. 1905.

*Wallasey
Order.*

Short titles.

Art. II. This Order may be cited as the Wallasey Order 1905 and the Wallasey Orders 1852 to 1900 and this Order may be cited together as the Wallasey Orders 1852 to 1905.

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